

Police Act, 1955

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Police Act, 2012

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Amending Acts

1. Some Nepal Law (Amendment and Re-organization) Act, 2020 2020.11.16
2. Police (First Amendment) Act, 2029 2029.06.05
3. Police (Second Amendment) Act, 2031 2031.07.05
4. Police (Third Amendment) Act, 2035 2035.05.21
5. Police (Fourth Amendment) Act, 2042 2042.04.24
6. Police (Fifth Amendment) Act, 2048 2048.08.04

Ratification and Publication Date

7. Republic Strengthening and Some Nepal Law Amendment Act, 2066 2066.10.07
8. Act to Amend Some Nepal Acts for Maintaining Gender Equality and Ending Gender-Based Violence, 2072 2072.06.14
9. Some Nepal Act Amendment Act, 2072 2072.11.13
10. Some Nepal Act Amendment Act, 2082 2082.04.14

Act No. 8 of the year 2012

An Act to provide for the formation and regulation of the Nepal Police Force and to determine the duties and functions of police personnel

Whereas it is expedient to reorganize the Police Force throughout Nepal and to make it an efficient instrument for the prevention and detection of crime Amended by Some Nepal Law (Amendment and Re-organization) Act, 2020. and for the maintenance of peace and order; therefore, this Act is hereby enacted and promulgated by His Majesty King Mahendra Bir Bikram Shah Deva. Chapter-1

Preliminary

1. Short title, extent and commencement: (1) This Act may be called the "Police Act, 2012".

(2) It extends to the whole of Nepal.

(3) The provisions of Chapters 1, 2, 3 and 6 shall come into force immediately, and the provisions of other Chapters may come into force in such areas of Nepal and from such dates as the Government of Nepal may, by notification in the Nepal Gazette, specify. Chapters 4 and 5 were brought into force throughout Nepal by a notice published in the Nepal Gazette dated Poush 13, 2016. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

- (a) "Officer" means a police officer from the rank of Assistant Sub-Inspector and Amended by the Fourth Amendment. above.
- (b) Omitted by the Fifth Amendment.
- (c) "Constable" means a police constable other than an officer. Amended by the Second Amendment.
- (d) "Zonal Superintendent" means a Senior Superintendent of Police, Superintendent of Police or Deputy Superintendent of Police, and such term also includes an Inspector specifically designated by the Government of Nepal by general or special order to perform all or some of the duties of a Zonal Superintendent.
- (e) "Police" means a person appointed or enrolled under this Act.
- (f) "Police Personnel" means police officers and constables.
- (g) "Subordinate Rank" means officers below the rank of Inspector and constables.
- (h) "Gazetted Officer" means an officer of the rank of Inspector and above.
- (i) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act.

Chapter-2

Formation, Supervision and Control of the Police Force

3. Formation of the Police Force: Amended by the Fifth Amendment.(1) There shall be one or more Police Forces for Nepal Omitted by the Republic Strengthening and Some Nepal Law Amendment Act, 2066 . The formation of the Police Force and the number of police personnel therein shall be as prescribed by the Government of Nepal from time to time. Amended by the Second Amendment.(2) The salary and other terms of service of the officers and constables of the Police Force shall be as determined by the Government of Nepal from time to time. Amended by the Second Amendment.4. Powers of the Government of Nepal: The Government of Nepal shall have the authority to supervise, control and issue directives to the police, and it shall be the duty of every police personnel to obey the orders and directives of the Government of Nepal. Amended by the Second Amendment.5. Inspector General of Police, etc.: Omitted by the Fourth Amendment The responsibility for police administration shall be with the Inspector General of Police, Added by the Fourth Amendment.Additional Inspector General of Police, and Deputy Inspectors General as deemed appropriate by the Government of Nepal Omitted by the Fourth Amendment . Amended by the Second Amendment.6. Zonal Superintendent, etc.: (1) The responsibility for the police administration of a Zone shall be with the Zonal Superintendent of Police. Amended by the Fourth Amendment.(2) The Government of Nepal may, by notification in the Nepal Gazette, appoint a Senior Superintendent of Police or Superintendent of Police in the Zonal Police Office and a Superintendent of Police, Deputy Superintendent of Police or Inspector of Police in the District Police Office, as required.

(3) Omitted by the Fifth Amendment. 7. Certificate of Appointment: (1) Every police personnel of the rank of Inspector or below shall, upon appointment, receive a certificate as set forth in the Schedule.

The certificate shall be countersigned by the official directed by the Government of Nepal by general or special order. (2) The certificate shall become null and void upon the cessation of the appointment of the person named therein as a police personnel, and it shall be surrendered to the official authorized to receive it. (3) While any police personnel is suspended from his post, the duties to be performed and the special privileges to be received by such police personnel shall cease, but the certificate issued pursuant to

sub-section (1) shall remain in force during the period of suspension; provided, however, that even during such suspension, the person concerned shall remain subject to the control of the same authorities as before suspension, shall be bound by the same discipline, and shall be liable to the same punishments as before. Amended by the Second Amendment.8. Control over Police: District-level police personnel shall, in matters of peace, security and related administration, remain under the control and direction of the Chief District Officer, and it shall be the duty of police personnel to obey the orders and directions given by the Chief District Officer in this regard. It shall be the duty of district police personnel to assist the Chief District Officer in other functions he is required to perform by law. Chapter-3 Control and Discipline of the Police Force Amended by the Second Amendment.9.

Appointment, Promotion, Dismissal and other Departmental Punishments of Police Personnel: (1) Appointment and promotion of gazetted police officers shall be made by the Government of Nepal, and appointment and promotion of other police personnel of subordinate ranks shall be made Amended by the Fourth Amendment. by the Inspector General of Police, Additional Inspector General of Police, Deputy Inspector General of Police, or Zonal Superintendent, as prescribed. (2) Police personnel shall hold office during the pleasure of the Government of Nepal. (3) The Government of Nepal may dismiss, remove from service, reduce in rank or salary, or impose other punishment on gazetted police officers, and Amended by the Fourth Amendment. the Inspector General of Police, Additional Inspector General of Police, Deputy Inspector General of Police, or Zonal Superintendent may, as prescribed, dismiss, remove from service, reduce in rank or salary, or impose other punishment on other officers and constables of subordinate ranks. (4) If any police personnel of subordinate rank commits negligence or carelessness in the performance of his duty, or renders himself unfit for the performance of any duty by his own act to avoid performing that duty, or violates discipline, or is otherwise guilty of misconduct, the authorized officer may dismiss him, remove him from service, reduce his rank or salary, or impose upon him the following punishments as prescribed, as deemed necessary: (a) Fine up to one month's salary. (b) Punishment drill, extra guard or fatigues, or confinement to quarters for up to 15 days, with or without duty. Provided, however, that the punishment specified in this clause shall not be imposed on an officer. (c) Removal from a position of significant responsibility or withdrawal of special pay allowance. Amended by the Second Amendment.10.

Protection against Arbitrary Dismissal, etc.: (1) When dismissing, removing from service, or reducing in rank or salary of any police personnel, except in the following circumstances, a reasonable period shall be allowed to him to show cause why such action should not be taken: (a) If he has been convicted by a court and sentenced to imprisonment on a criminal charge involving moral turpitude, (b) If he has been convicted and sentenced to imprisonment for an offence under this Act, or (c) If the punishing officer deems it not reasonable to afford such opportunity to show cause, recording in writing the reasons and circumstances thereof. (2) Only the authority competent to appoint a police personnel may dismiss him, remove him from service, or reduce his rank or salary. Added by the Second Amendment.10a. No Bar to Prosecution: No prosecution under this Act or any other applicable law of Nepal shall be deemed to be barred merely because departmental action or punishment has been taken under Section 9. Amended by the Second Amendment.11. Procedure for Departmental Action and Punishment, and Appeal: (1) When an officer authorized to impose departmental punishment under Section 9 orders the dismissal, removal from service, or reduction in rank or salary of any police personnel, he shall prepare and keep on record a file containing the charge with the basis thereof, details of the investigation conducted, the plea of innocence of the personnel if given an opportunity to show cause, and his own findings on any further inquiries made pursuant to that plea, and if no opportunity to show cause was given, a memorandum showing the circumstances justifying the denial of such opportunity, all duly signed. (2) An appeal shall lie against any order of

departmental punishment given under Section 9 to the prescribed authority. Provided, however, that no appeal shall lie against a punishment imposed under clause (b) of sub-section (4) of Section 9. Amended by the Fifth Amendment. Amended by the Second Amendment. 15. Duties of Police Personnel: (1) The duties of every police personnel shall be as follows: (a) To promptly obey and execute all lawful orders and warrants issued by duly authorized authorities. (b) To collect information likely to affect peace and order and report the same to higher authorities.

Amended by the Fifth Amendment. (c) To prevent crime and protect the public from unnecessary harassment. (d) To detect criminals and bring offenders to justice according to law. (e) To arrest persons liable to be arrested under law and persons against whom there is sufficient cause for arrest. (f) To perform duties required by law in force. (g) To render all possible assistance to persons who are helpless and abandoned on roads or paths, and to take charge of persons under the influence of intoxicants who are dangerous or incapable of self-care, and of insane persons. (h) To take immediate necessary action for the care and assistance of injured or ill persons who are arrested or in custody, and to take proper care of their arrangement while guarding or escorting them. (i) To make arrangements for food and lodging for persons arrested or in custody. (j) To not behave uncivilly or cause unnecessary annoyance during searches. Amended by Some Nepal Act Amendment Act, 2082. (k) To behave courteously and respectfully with everyone, including service recipients. (l) To make every possible effort to prevent damage or loss from fire. (m) To make every possible effort to protect the public from accidents or dangers. (2) A police officer of at least the rank of Assistant Sub-Inspector shall have the authority to enter and inspect without warrant any shop, hotel, lodge, restaurant, gambling den, or any place where persons of ill repute or habitual offenders commonly assemble, for the purpose of achieving any objective mentioned in clauses (a) to (e) above, where intoxicating drugs or alcohol are sold and consumed. Added by the Fifth Amendment. (3) If entry or inspection without warrant is made pursuant to sub-section (2), such police officer shall give written information, along with the reason thereof, to the Chief District Officer as soon as possible. Amended by the Second Amendment. 16.

Power of Chief District Officer to Issue Warrants, etc.: Any police officer may, in the course of his duty, submit information received to the Chief District Officer and report it for the issuance of any warrant of arrest, search warrant, summons or other legal notice that may be issued by law against a person who has committed or is suspected of having committed or is about to commit an offence, and where no specific provision exists under the applicable law for any court or authority to issue such warrant, summons or notice, the Chief District Officer may issue it. Where any court or authority has the legal authority to issue such warrant, search warrant, summons or other legal notice, the police officer shall submit such report directly to that court or authority. 17. Power of Police Personnel to Arrest without Warrant: Police personnel may arrest without warrant in any public place the following persons: (a) A person known to have committed or be about to commit an offence punishable by law with imprisonment for 3 years or more. (b) A proclaimed offender liable to be arrested. (c) A person moving about suspiciously during curfew hours. (d) A person found at night with arms, tools, or implements for housebreaking without reasonable cause. (e) A person who has escaped or attempts to escape from lawful custody. (f) A person reasonably suspected of being a deserter from the Nepal Army or Police Force. (g) A person reasonably suspected of having committed an offence under Chapter 6 of this Act. (2) A person arrested under sub-section (1) above must be produced before a court as soon as possible, within 24 hours, excluding the time necessary for the journey. (3) If a police personnel sees that damage is about to occur in his presence to any movable or immovable public property, he may intervene himself to prevent such damage. 18.

Regulation of Traffic or Passengers on Public Roads, etc.: It shall be the duty of police personnel to: (a) Regulate and control traffic on public roads and prevent obstructions thereon, and ensure that rules and orders made under this Act or applicable laws for the observance of the public on or near public roads Omitted by the Fifth Amendment are not violated. (b) Maintain peace on public roads and at public bathing and washing places, ghats (riverbanks), airports, railway stations, fairgrounds, temples, and other public places, and in or near places of worship during worship. (c) Maintain order at public bathing and washing places, ghats, airports, and railway stations, and prevent overcrowding at such places and at public ferries, and ensure that rules and orders made under this Act and other applicable laws Amended by the Second Amendment. for the observance of the public at such places or on boats Omitted by the Fifth Amendment are not violated. Amended by the Fifth Amendment.19. Regulation of Public Meetings and Processions: (1) With the objective of preventing inconvenience to the public or a breach of the peace in connection with holding meetings or taking out processions on public roads, streets, or thoroughfares, the Chief District Officer or a police officer authorized by him for this purpose may prescribe the place, route, and time for the meeting or procession. (2) If any act is done contrary to sub-section (1), the Chief District Officer or a police officer authorized by him for this purpose may stop or disperse such meeting or procession. 20. Police to Take Charge of Unclaimed Property: It shall be the duty of every police personnel to take charge of unclaimed property and to prepare an inventory thereof and submit it to the Chief District Officer. 21. Chief District Officer to Attach Property and Issue Notification: (1) The Chief District Officer may attach such property and issue a notification calling upon any person with a claim to the property to appear within 6 months with evidence of their claim. (2) If the rightful owner of such property is not found or does not appear, and if the property is perishable or liable to deteriorate naturally, or if the Chief District Officer considers it beneficial to the owner to sell it by auction, or if the value of the property is less than Rs. 10/-, the Chief District Officer may, at any time, order the property to be sold by auction and the proceeds Omitted by the Second Amendment to be deposited as security Omitted by the Second Amendment 22.

Property to Vest in Government of Nepal if No Claimant Appears: (1) If no person claims such property within the prescribed period of 6 months, and if the property has not been sold by auction pursuant to sub-section (2) of Section 21, the property shall be sold by auction on the order of the Chief District Officer. (2) The proceeds from the auction of property under sub-section (1), and the proceeds from an auction under sub-section (2) of Section 21 where no claim is established, shall after 6 months vest in the Government of Nepal. Added by the Third Amendment.22a. Concerning Unclaimed Dead Bodies: If an unclaimed dead body is found, the police shall take it into custody, identify the body, and if the death is from natural causes, have an inquest report prepared and hand over the body to the legal heir for disposal. If no legal heir is found or if the heir refuses to accept the body, the police shall, if required for study purposes at a place where a medical science study institute exists, hand over the body to such institute. In a place where no such institute exists, or if such institute does not require it, the police shall arrange for cremation or burial through the local Amended by the Fifth Amendment. Amended by Some Nepal Act Amendment Act, 2072. Rural Municipality or Municipality or a social organization. Provided, however, that in case of death by accident, suicide, or under suspicious circumstances, such body may only be handed over to the study institute or cremation/burial arranged after completing all necessary investigation procedures including post-mortem examination as per applicable law. 23. Duty of Police Personnel to Keep Diary: (1) It shall be the duty of the authorized personnel of every station to keep a diary in the format prescribed by the Government of Nepal, entering therein all complaints and charges, the names of all persons arrested, the names of complainants, the offences with which arrested persons are charged, weapons or property recovered from them or otherwise, and the names of witnesses examined. (2) The Chief District Officer may call for and inspect such

diary. 24. Repealed by the Fifth Amendment 25. Repealed by the Fifth Amendment 26. Repealed by the Fifth Amendment Chapter ? 5 Special Provisions for Maintaining Public Peace and Security 27.

Deployment of Additional Police upon Application by a Person: (1) Upon application by any person, the Zonal Superintendent may deploy additional police constables to maintain peace or order, or to enforce the provisions of this Act or other Acts concerning a specific type of crime, or to perform other police duties in any place or area. (2) The applicant shall bear the cost of such additional police. Such additional police shall be deployed for a period determined reasonable by the Zonal Superintendent under his order. (3) If the applicant submits a written application to the Zonal Superintendent at any time requesting the withdrawal of such police, the applicant shall not be required to bear the cost after the expiry of a period not exceeding one month from the date of receipt of such application, as fixed by the Zonal Superintendent. Amended by the Second Amendment. 28. Deployment of Additional Police in the Vicinity of Railways or Other Establishments: (1) If, during the construction or operation of an airport, railway, canal or any other public work, factory, commercial establishment, entertainment facility, or transport system, the Government of Nepal considers at any time that additional police are necessary due to the conduct or suspected conduct of persons employed at or visiting such work, factory, or establishment, it may deploy such additional police in such numbers as it thinks necessary for as long as required. (2) If additional police are deployed under sub-section (1), the Government of Nepal may order the cost of such deployment to be recovered from the work, factory, or establishment for which the deployment was necessary, and such cost shall be borne by the fund of that work, factory, or establishment. (3) The Government of Nepal may, by notification published in the Nepal Gazette, delegate the powers conferred upon it under this section to the Amended by the Fourth Amendment. Inspector General of Police, Additional Inspector General of Police, Deputy Inspector General of Police, Chief District Officer, or Zonal Superintendent. 29. Deployment of Additional Police in Cases of Special Danger to Public Peace: (1) If there is a state of Amended by the Second Amendment. unrest or danger in any area, and if it appears from the conduct of the inhabitants or any particular class of inhabitants thereof that the deployment of additional police is necessary Amended by the Second Amendment., the Government of Nepal may, by notification published in the Nepal Gazette, specify the following matters: (a) The place where additional police are to be stationed.

Omitted by the Second Amendment and

(b) The period for which additional police are to be stationed.

(2) The decision of the Government of Nepal under sub-section (1) shall be final.

(3) Subject to sub-section (5) of this section, the cost of such additional police shall be borne by the inhabitants of the area specifically mentioned in the notification.

(4) The Omitted by the Second Amendment Chief District Officer shall, after making such inquiry as he deems reasonable, determine and apportion the amount to be paid by each of the inhabitants, excluding those exempted under sub-section (5). The Chief District Officer shall make such apportionment considering the capacity of the inhabitants.

(5) The Government of Nepal may, by notification published in the Nepal Gazette, exempt any class or portion of such inhabitants from bearing such cost. Explanation: - For the purposes of this section, "inhabitant" includes persons who, though not residing in the place, hold and possess or enjoy land or immovable property within such area by themselves or through agents, heirs or servants, and also includes landlords who directly or through heirs, agents or servants collect rent from or cultivate land through tenants.

30. Amended by the Second Amendment. Compensation to Injured Persons for Loss Caused by Unlawful

Conduct of Inhabitants: (1) If, within an area for which a notification has been issued under Section 29, death or grievous hurt has been caused, or loss of or damage to property has occurred, due to the unlawful conduct of the inhabitants or their Amended by the Second Amendment. branch or class, or as a consequence thereof, any person residing in such area claiming loss or damage from such unlawful conduct may apply for compensation to the Chief District Officer within one month of the occurrence of such loss or damage, or within such shorter period as may be prescribed.

(2) Even if additional police constables have or have not been deployed in the area under Section 29, the Chief District Officer, with the approval of the Government of Nepal Amended by the Second Amendment., may make the necessary inquiry and do the following in such area:

(a) Publish the names of persons Amended by the Second Amendment. injured by such unlawful conduct or its consequences.

(b) Specify and determine the amount of compensation to be paid to such persons and the method of distribution.

(c) Determine the amount of compensation to be paid by each of the Amended by the Second Amendment. inhabitants of such area, other than those exempted from paying compensation under sub-section (3) and the applicants, who shall bear the compensation.

Provided, however, that the Chief District Officer shall not publish names or determine amounts under this sub-section unless it is established that the loss mentioned above occurred from a riot or unlawful assembly within such area, and that the Amended by the Second Amendment. injured person was not at fault in connection with the incident causing such loss.

(3) It shall be lawful for the Government of Nepal, by order, to exempt any person or Amended by the Second Amendment. branch or class of such inhabitants from paying a portion of such compensation.

(4) The publication made and the amount of compensation Amended by the Second Amendment. determined or order given by the Chief District Officer under sub-section (2) may be reviewed by the Government of Nepal or any officer appointed by the Government of Nepal; otherwise, it shall be final.

(5) No civil action shall lie in respect of any loss for which compensation has been recovered under this section. Explanation: - In this section, "inhabitant" has the same meaning as in the preceding section. 31. Repealed by the Fifth Amendment

32. Recovery of Sums Payable as Mentioned Above: (1) The sums payable under this Chapter shall be recovered by the Chief District Officer in the manner prescribed for the recovery of fines under the applicable law.

(2) All sums paid or recovered under Section 30 Amended by the Second Amendment. shall be paid by the Chief District Officer to the persons entitled to receive them under that section. Chapter ? 6

Offences and Penalties

33. Repealed by the Third Amendment

Amended by the Third Amendment.33a.

Serious Offences: If a police personnel commits any of the following offences, he shall be liable to Omitted by the Fifth Amendment imprisonment for life or imprisonment for up to fourteen years or a fine equivalent to up to three years' salary or both: (a) If he mutinies or causes mutiny in the police service, or participates in a

mutiny, or spreads incitement to commit or cause mutiny, or conspires or attempts to do so, (b) If, being present at the place of a mutiny, he does not make every possible effort to suppress it, or during such time, causes any person loyal to duty, Omitted by the Republic Strengthening and Some Nepal Law Amendment Act, 2066 or any person on duty, to be diverted from his duty, or attempts to do so, (c) If, having knowledge of an intention to mutiny, or of a conspiracy or attempt, or having reason to believe that such is ongoing, he fails to report or notify his superior officers as soon as possible, (d) Omitted by the Fifth Amendment (e) If he abandons or assists in handing over to attackers any station, post, guard, watch, etc., or any arms, ammunition, other government property, or documents in his possession or under his charge, (f) If, during an attack, encounter, or when there is a likelihood thereof, he knowingly spreads false terror among the police force or the public, or spreads false news of danger with the intention of creating panic or alarm. Added by the Third Amendment.33b.

Other Serious Offences: If a police personnel commits any of the following offences, he shall be liable to imprisonment for up to ten years or a fine equivalent to up to two years' salary or both: Amended by Some Nepal Act Amendment Act, 2072.(a) If he does or causes to be done, or attempts to do, anything by writing, word, gesture, sign, or in any other manner, which is likely to cause hatred, contempt, or disregard for the Government of Nepal, its functioning, or the sovereignty, territorial integrity, nationality, or independence of Nepal, or is likely to disrupt the harmonious relations between federal units or various castes, ethnicities, religions, or sects, (b) If he commits or prepares for robbery within any friendly nation of the Government of Nepal, assists or provides information to such person, or contacts such person with that intention, (c) If, during an attack by attackers, dacoits, smugglers, miscreants, or rioters upon any station, post, guard, watch, picket, patrol, team, establishment, or office where he is deployed or which is under his charge or protection, or during an encounter with them or when such encounter is imminent, he cowardly flees, (d) If he sells or disposes of arms or ammunition belonging to the government or any other person under his charge, (e) If he abandons his station, post, guard, watch, picket, team, patrol, establishment, or office to go in search of loot, (f) If, whether on duty or not, knowing or having reason to believe a person to be a superior rank personnel, he uses or attempts to use criminal force or intimidates him, (g) If, upon receiving an order from a superior officer or upon termination of service, he fails or refuses to immediately surrender his certificate of appointment and any arms, ammunition, equipment, stores, materials, cash, or goods belonging to the government or any other person that were under his charge during his service, or fails to render a reasonable account thereof, (h) If he breaks into a house or place with intent to commit theft, or robs property in any manner, or causes loss, damage, or harm, (i) If he shows cowardice in the performance of his duty. Amended by the Third Amendment.34.

Other Offences: If a police personnel commits any of the following offences, he shall be liable to imprisonment for up to five years or a fine equivalent to up to one year's salary or both: (a) If he intentionally or negligently damages, destroys, loses, or misuses any equipment, stores, uniform, insignia, medals, cash, goods, vehicles, fuel, etc., belonging to the government or any other person under his charge, or dishonestly appropriates or gives them to himself or another, (b) If he assaults or insults a person bringing rations or other necessities to camp, or commits an offence by using force, or forcibly occupies any place, (c) If he disobeys the lawful order of a superior police personnel, (d) If he deserts from the Police Force, (e) If he sleeps while posted as sentry or leaves his post without relief or without permission, (f) If he leaves his guard, picket, team, or patrol without regular relief or permission, (g) If he resigns without the permission of the officer authorized to appoint him, or ceases to perform the duties of his post, (h) If he strikes or uses or attempts to use force against a sentry, (i) If, while in command of a guard, picket, or patrol, he refuses to receive a prisoner or person duly delivered to him, releases without proper authority any person or prisoner

under his charge, or through negligence allows such prisoner or person to escape, (j) If he leaves the place of arrest or confinement before being released by competent authority, (k) If he falsely feigns or pretends illness or physical weakness, (l) If he knowingly submits a false roll or report regarding the number or condition of persons under his command or charge, or regarding the money, arms, ammunition, clothing, materials, or other goods of such persons or of any person joining the Government of Nepal or the police or the Police Force, or if, with bad intent or through culpable negligence, he omits or refuses to prepare or transmit a roll or report on the matters mentioned above, (m) If he participates in, makes a speech at, shouts slogans at, or issues a statement for a meeting, procession, or demonstration organized with political objectives, Added by the Act to Amend Some Nepal Acts for Maintaining Gender Equality and Ending Gender-Based Violence, 2072.(m1) If he commits gender-based violence, (n) If he causes undue harassment, trouble, damage, or loss of property to anyone by misusing the authority of his position. 34a. Repealed by the Third Amendment 35.

No Bar to Prosecution under Other Acts: Nothing in this Act shall prevent the prosecution under any other Act of a person committing an offence punishable under this Act, or his liability to punishment under such other Act, or his liability to a penalty more severe than that provided in this Act. Provided, however, that no person shall be punished twice for the same offence. Amended by the Third Amendment.36. Establishment and Constitution of Police Special Courts: (1) For the initial proceedings and adjudication of cases relating to offences punishable under this Chapter, the following Police Special Courts shall be constituted for the following ranks of police personnel: (a) District Police Special Court for police constables up to Assistant Sub-Inspector. (b) Provincial Police Special Court for police Amended by Some Nepal Act Amendment Act, 2082. Assistant Sub-Inspector up to Deputy Superintendent of Police. (c) Central Police Special Court for Superintendent of Police and police officers of higher ranks. Amended by the Fifth Amendment.(2) The District Police Special Court, Regional Police Special Court, and Central Police Special Court under sub-section (1) shall be constituted as necessary by the Ministry of Home Affairs, Government of Nepal, and each Court shall consist of three members, presided over by an officer of the Judicial Service and including one police officer; provided that if the person facing proceedings is a police officer, no officer of a lower rank shall serve on the Special Court. Added by the Third Amendment.36a. Separate Police Special Court may be Constituted: Notwithstanding anything contained in Section 36, if an officer of the rank of Assistant Sub-Inspector or above and police personnel of the same or lower ranks commit an offence under this Chapter jointly, the Government of Nepal may, by notification published in the Nepal Gazette, constitute a separate Police Special Court for the initial proceedings and adjudication of such case. Added by the Third Amendment.36b. Appeal: (1) A person aggrieved by a decision of the Police Special Court under Section 36 in a case relating to an offence under this Chapter may appeal to the next higher Police Special Court within thirty-five days. (2) An appeal shall lie to the Government of